

		responses were served on 7/11/23. Although Parkin claims he never received the responses via U.S. Mail, he did receive a courtesy copy of the responses one month before filing the subject motion. The crux of Parkin's argument in his motion is that Mr. Schneider cannot be trusted and that he fabricated the proof of service. However, Mr. Schneider has submitted a declaration detailing the process he followed in serving the discovery responses. Parkin's "metadata" argument not only lacks foundation but is specifically addressed by Mr. Schneider. The Court also notes that Parkin's argument he did not receive the responses in the mail turns in part on the assumption that Mr. Smith is more trustworthy than Mr. Schneider, when both are officers of the Court. The Court will not make this assumption. Accordingly the motion is DENIED. CCP §2031.310(h) states that the court shall impose sanctions against "any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Here, Parkin lacked substantial justification for filing the subject motion. Accordingly, the Court GRANTS Mann's request for sanctions and ORDERS Drew Parkin to pay sanctions of \$1,815 to Alex Mann, through his attorney of record, within 30 days. Counsel for moving party is ordered to give notice of this ruling.
6	Nachtrieb v. County of Orange	O/C
7	Pressney vs. Intermarketing Media, LLC	Plaintiff John Pressney's ("Plaintiff") Motion to Compel ("Motion") defendant Intermarketing Media, LLC dba Resort Advisory Group's ("RAG") initial responses to Requests for Production, Set Two ("RFP") is TENTATIVELY GRANTED. RAG improperly failed to serve any response to the RFP, and only lodged an objection in its opposition to the Motion. However, the objection is one based upon third-party privacy rights, which are important and protected under the state Constitution. (Cal. Const., art. I, § 1.)" (<i>Williams v. Superior Court</i> (2017) 3 Cal. 5th 531, 552 ("<i>Williams</i>").) "Unless otherwise limited by order of the court . . . any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. . ." (Civ. Proc. Code § 2017.010.)

"Protection of informational privacy is the provision's central concern. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35 ("*Hill*")) In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (*Id.*, at 35–37.) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (*Id.*, at 37–40)." (*Williams, supra*, 3 Cal. 5th at 552.) "The *Hill* test, conceived in the context of a pleaded cause of action for invasion of privacy, has been applied more broadly, including to circumstances where litigation requires a court to reconcile asserted privacy interests with competing claims for access to third party contact information." (*Id.*)

"To meet this standard [under Civ. Proc. Code § 2017.010], a party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities. [Citation.] In assessing the party's proffered justification, courts must keep in mind the more limited scope of discovery available from nonparties. [Citation.][¶] Even if information is otherwise discoverable, it may be protected by a constitutional or statutory privilege." (*Bd. of Registered Nursing v. Superior Ct. of Orange Cnty.* (2021) 59 Cal. App. 5th 1011, 1039.)

Here, Plaintiffs allege Defendants, a timeshare exit company, and their agents made multiple misrepresentations regarding Defendants' ability to get Plaintiffs out of a timeshare. Plaintiffs also allege misrepresentations to Plaintiffs regarding retaining Defendants charged an unconscionably large fee for doing little more than referring Plaintiffs to an attorney and based the fee on Plaintiffs' financials.

The records sought would be relevant in that they would provide additional evidence pertaining to RAG's clients, the fees charged, what service RAG provided to those clients, how many client timeshares were cancelled, refunded, and/or foreclosed upon. It would show how many times RAG recommended clients stop making payments on timeshares (as it did with Plaintiffs), fees charged to other clients, financing fees RAG charged, as well as evidence supporting RAG's alleged 100% success rate in cancelling timeshares with major developers.

Good cause exists to require the documents be produced. However, the issue now is how to protect the third-party privacy rights and to permit Plaintiff to obtain useful information. The information sought, including contact and financial information, among others, is the type of information protected by the right to privacy.

The court requires parties to appear at the hearing to discuss how production of relevant information and while protecting third-party

		privacy rights can be achieved. This may need to occur through redacting records, assigning non-personally identifying numbers to individual cases so they can be tracked across documents, a protective order, or some other means. However, the court will discuss this with the parties at the 09/25/23 hearing date and will most likely continue the hearing to require parties to meet and confer privately to work out an arrangement that meets the twin goals of production and privacy protections. Once a workable plan has been presented to the court, the court will grant the motion based on that plan. No monetary sanctions will be awarded at this time as the issue of third-party privacy rights was an appropriate reason for not initially producing the records.
8	Szeto v. Woo	O/C
9	Law Office of Jeffrey G. Jacobs v. Isaacson	Before the Court at present are four unopposed discovery motions, filed on 8/24/23 by Plaintiff Law Office of Jeffrey G. Jacobs ("Plaintiff"), against Defendant Ian Isaacson ("Defendant"). The Motions filed as ROAs 43, 42 and 45, respectively, demonstrate that Form Interrogatories, Special Interrogatories, and Requests for Production, all Set One, were propounded by Plaintiff to Defendant on 12/23/22. (ROA 40, ¶ 2, Exs. B-D.) No responses were ever provided, despite repeated requests. (Id. at ¶¶ 4-17.) If responses are not timely provided to Interrogatories or Requests for Production, all objections thereto are waived, and responses may be compelled. (C.C.P. §§ 2030.290(a), (b), 2031.300(a), (b).) All three Motions are therefore GRANTED on the merits. Defendant is to provide verified responses, without objections, within 15 days after service of notice of this ruling. The Motion filed as ROA 44 demonstrates that Requests for Admission, Set One, were propounded by Plaintiff on 12/23/22. (ROA 40, ¶ 2, Ex. A.) No responses were ever provided despite repeated requests. (Id. at ¶¶ 4-17.) As no responses were timely provided, all objections have been waived. (C.C.P. §2033.280(a).) Unless responses are provided before the date of the hearing, the Court may properly order that the matters specified in the requests be deemed admitted. (C.C.P. §2033.280(b)(c).) Therefore, unless Defendant can present evidence by the time of the hearing that responses to the Requests for Admission have been served, and that such responses are in substantial compliance with C.C.P. § 2033.220, the Motion shall be GRANTED. Plaintiff's requests for monetary sanctions are GRANTED IN PART. As Plaintiff here is effectively self-represented, it cannot recover its "attorney's fees" as a sanction. (See <i>Musaelian v. Adams</i> (2009) 45 Cal.4th 512, 519; <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 280.) But it can recover its filing costs, in the amount of \$60 per motion. The Court thus finds that only the reduced sum of \$60 per motion, for a total of \$240 in sanctions, should be imposed on Defendant here. Those sanctions are to be paid to Plaintiff, through its counsel of record, within 30 days after service of notice of this ruling.